

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 28, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Absent: Ken Esquibel. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on November 14, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a Public Hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 0.36 acres of land at 4612 Van Buren Avenue, Laramie County, Wyoming (located west of Van Buren Avenue, north of Dell Range Boulevard). Purpose of the hearing having been met, Mayor Collins closed the public hearing. Comments were made by the following members of the governing body: Dr. Aldrich.

Mayor Collins opened a Public Hearing for a transfer of ownership of retail liquor license application filed with the City Clerk’s Office for Andiamo 307 LLC d/b/a Andiamo 307, 1808 O’Neil Ave., Cheyenne, WY (license currently held by Poor Richard’s d/b/a Poor Richard’s). Purpose of the hearing having been met, Mayor Collins closed the public hearing and referred the application to Finance Committee. Public comment was made by: Piper Rauzi. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Roybal and Mr. Segrave.

ORDINANCE –3rd READING – Amending Section 5.12.110, Open Container-Sales and Consumption-Exceptions, of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Municipal Code of the City of Cheyenne, Wyoming, amending provisions governing the possession of alcoholic liquor or malt beverages in an open container as specified. Reporting for Public Services Committee, Dr. Rinne advised there was no recommendation from the committee. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Dr. Rinne moved to amend by substitute dated November 22, 2022, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Amy Spieker, Director of Community Health,

Cheyenne Regional Medical Center. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Mr. Segrave. (#4475)

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from P Public to CB Community Business for land located south of Missile Drive, east of I-25. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Shane Hansen, Steil Surveying Services.

ORDINANCE – 2nd READING Amending Ordinance #4447, approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities by replacing Board of Public Utilities Resolution No. 2022-03 in Section 9. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located west of Van Buren Avenue, north of Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to NR-3 Neighborhood Residential - High Density for land located west of Van Buren Avenue, north of Dell Range Boulevard – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from LI Light Industrial to NR-3 Neighborhood Residential - High Density for land located east of Warren Avenue, south of 4th Street -- referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION -- Authorizing the City Treasurer to discharge uncollectible debts pursuant to Wyo Stat. §16-4-502. Motion (per Consent Agenda) carried. (#6290)

[CA] 2022-2023 Collective Labor Agreement re-negotiation between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters. Motion (per Consent Agenda) carried. (#7640)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County for financial reimbursement to the City for construction of the Laramie County Community College/Sweetgrass Underpass (2017 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$407,777.80). (#7641)

Memorandum of Understanding between the City of Cheyenne and Sun Valley Estates, LLC, outlining responsibilities in pursuit of a land exchange of approximately 15,375 square feet to facilitate better alignment of the public Greenway system and better site layout for private multi-family development. Mr. White moved to approve, seconded by Mr. Segrave. Motion carried.

Voting “yes” – all members of the governing body present with exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Dr. Rinne. (#7642)

Subgrantee Agreement between the City of Cheyenne and Laramie County for the FY 2022 Byrne Justice Assistance Grant for community-oriented policing overtime, benefits and patrol accessories (JAG 2022 Grant). Mr. White moved to approve in an amount not to exceed \$54,443.00, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Johnson. (#7643)

[CA] Agreement between the City of Cheyenne and The SpyGlass Group, LLC, for “SpyCare”, a cloud software solution, to foster Information Technology (IT) management concerning communications subscriptions, contract tracking and auditing (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$29,955.00). (#7644)

Professional Services Agreement between the City of Cheyenne and Granite Peak Environmental for Qualified Environmental Professional Services for an USEPA Brownfield Assessment Grant (U.S. Environmental Protection Agency Grant). Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to approve in an amount not to exceed \$488,760.00, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present with exception of Mr. Laybourn voting no. Public comment was made by: Christina Hiegel, Ayres Associates. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. White. (#7645)

Professional Services Agreement between the City of Cheyenne and Hellas Construction, Inc. for the South Lions Park Pickleball Court Design and Installation Services Project (Lottery Proceeds Capital Expenditures & Development Impact Fees/Park Improvements). Mr. White moved to approve in an amount not to exceed \$552,275.00, seconded by Dr. Aldrich. Mr. White moved to amend by substitute dated November 20, 2022, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Cook. (#7646)

[CA] Professional Services Agreement between the City of Cheyenne and Summit Engineering for design and bidding services for the US-30 Greenway Underpass Project (2017 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Grant award agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate, SHSP Grant Fiscal Year 2022 in the amount of \$138,078.00 for the Cheyenne Regional Response Team #7 (DHS Grant Code: EMW-2022-SS-00077) – referred to Finance Committee.

[CA] Grant award agreement with the State of Wyoming Office of Homeland Security for a grant from the U.S. Department of Homeland Security (DHS), FEMA, Grant Programs Directorate,

SHSP Grant Fiscal Year 2022 in the amount of \$110,000.00 for the purchase and installation of two permanent generators (DHS Grant Code: EMW-2022-SS-00077) – referred to Finance Committee.

[CA] Memorandum of Understanding between the Cheyenne Police Department, Cheyenne Regional Medical Center, Laramie County Sheriff's Department and Dr. Clair White of the University of Wyoming regarding the establishment and implementation of a Community-Based Law Enforcement and Behavioral Health Co-Response to behavioral health emergency calls within Laramie County (Wyoming Department of Health Grant) – referred to Finance Committee.

[CA] Business Associate Agreement between the City of Cheyenne, Cheyenne Regional Medical Center and Dr. Clair White for the Behavioral Health Co-Response Project (Wyoming Department of Health Grant) – referred to Finance Committee.

[CA] Contract between the City of Cheyenne and the Downtown Development Authority (DDA) granting a subaward to be used for a Small Business Rental Assistance Program for businesses in the Historic Downtown District experiencing hardship due to COVID (American Rescue Plan Federal Recovery Funds (ARPA)) – referred to Finance Committee.

[CA] Consideration of Bid #S-4-23 for an agreement between the City of Cheyenne and Aztec Construction Co., Inc., for the Cheyenne Fire & Rescue Department-Site 1 Utility Main Extensions Project (American Rescue Plan Federal Recovery Funds (ARPA)). Motion (per Consent Agenda) carried (in an amount not to exceed \$663,681.00). (#7647)

[CA] Consideration of Bid #E-7-23 for one (1) new Reel Grinder and one (1) new Bedknife Grinder for the City of Cheyenne Golf Division (Golf Facilities Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$94,370.10).

[CA] Consideration to Purchase between the City of Cheyenne, and Granicus, LLC, for a three (3) year software agreement to utilize the Peak Agenda Management Software and Public Records Request Software for the City of Cheyenne City Clerk's Office (American Rescue Plan Federal Recovery Funds (ARPA)). Motion (per Consent Agenda) carried (in an amount not to exceed \$63,450.00). (#7648)

[CA] Consideration to Purchase between the City of Cheyenne and Vogel Traffic Services d/b/a EZ-Liner, for the refurbishment of an existing 2013 EZ-Liner Striping truck for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$157,000.00).

[CA] Consideration of Bid #E-8-23 for ammunition for the City of Cheyenne, Cheyenne Police Department (General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-9-23 for one (1) new Utility Work Machine for the City of Cheyenne Weed & Pest Division (Weed & Pest Fund) – referred to Finance Committee.

Appointment of Dave Teubner to the Downtown Development Authority (DDA) Board. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all

members of the governing body present with the exception of Mayor Collins who did not vote (Mayoral appointment)

Comment was made by the following members of the governing body on the Voucher Report as presented: Mr. Laybourn.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held December 12, 2022 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of ownership of retail liquor license application filed with the City Clerk's Office for Railspur, LLC d/b/a Railspur, 707 W. Lincolnway, Cheyenne, WY (license currently held by Get Bent, LLC)

Public comment was made by Chad Willett under other business.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Laybourn and Mr. White.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:03 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
December 3, 2022